

papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c). Plaintiff seeks \$810 in monetary sanctions which is comprised of one hour already spent and two anticipated hours at the rate of \$250 per hour plus the \$60 filing fee. The Court finds the hourly rate to be reasonable and awards one hour for time already spent. Given that there is no Opposition, one additional hour will be awarded if Plaintiff's counsel attends the hearing. The \$60 motion filing fee is awarded.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Sanctions will be awarded in either the amount of \$310 or \$560 depending on whether Plaintiff's counsel attends the hearing. Plaintiff provided a proposed Order, however, the contents of the Requests for Admission are not included. Plaintiff will need to submit a proposed Order that includes the text of the Requests for Admission being deemed admitted.

IN RE: MCKINNON

CASE NUMBER: 26CV-0210719

Tentative Ruling on Petition for Change of Name: Petitioner Wendy Marie McKinnon aka Wendy Marie Parten aka Wendy Marie Rogers aka Wynda Marie Rogers seeks to change her name to Wendy Marie McKinnon. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. There is a discrepancy between the Order to Show Cause and the Decree Changing Name. The name Wynda Marie Rogers is listed in the Decree, but not the Order to Show Cause. An appearance will be necessary to confirm with Petitioner what names should be listed in the Decree Changing Name. Once clarified, the Court intends to **GRANT** the Petition. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

SYNCHRONY BANK VS. CLIFTON

CASE NUMBER: 24CVG-01822

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on June 23, 2026 for Plaintiff's failure to timely seek entry of default and failure to timely prosecute. This is a collections case filed on December 9, 2024. CRC 3.740(f) provides that a plaintiff must obtain a default judgment within 360 days of filing the complaint. Plaintiff filed a response that provides an inadequate excuse for the delay. Per counsel, the matter settled in April of 2025. There is no valid reason that Plaintiff has not yet filed a Notice of Settlement. Counsel stated that the payment plan will be complete in November of 2026. Given how close in time that is, the Court will continue hearing on the Order to Show Cause to **Monday, December 14, 2026 at 8:30 a.m. in Department 63**. If Plaintiff has not obtained a default judgment or dismissed the case by December 14, 2026, the Court will dismiss the matter without prejudice pursuant to Gov. Code § 68608(b). **No appearance is necessary on today's calendar.**

THE PEOPLE OF THE STATE OF CALIFORNIA, ET AL. VS. COUNTY OF SHASTA, ET AL.

CASE NUMBER: 26CV-0211092

Tentative Ruling on Motion for Leave to File Amicus Brief in Support of Petitioners: Several advocacy organizations including Asian Americans Advancing Justice, Southern California, Asian Law Caucus, Disability Rights California, League of Women Voters of California Education Fund, League of Women Voters of Redding Area, ACLU of Northern California, ACLU of Southern California, and ACLU of San Diego & Imperial Counties seek leave to file an amicus brief in this matter. The motion is opposed by Real Parties in Interest (RPI) Jim Burnett, Kari Chilson, Richard Gallardo, Laura Hobbs, and Diedre Holliday. Petitioners The People of the State of California, ex rel, Rob Bonta, Attorney General of the State of California, and Shirley N. Weber PH.D., in her

official capacity as Secretary of State and Respondents County of Shasta and Clint Curtis, in his official capacity as Shasta County Clerk and Registrar of Voters do not oppose the motion.

The Petition in this matter seeks a Writ of Mandate and both injunctive and declaratory relief related to Measure B, which passed with a majority vote in the June 2, 2026, primary election. The proposed amici in this matter are all non-profit organizations with a history of advocating for voting rights.

Amici curiae, literally “friends of the court,” perform a valuable role for the judiciary precisely because they are nonparties who often have a different perspective from the principal litigants. “Amicus curiae presentations assist the court by broadening its perspective on the issues raised by the parties. Among other services, they facilitate informed judicial consideration of a wide variety of information and points of view that may bear on important legal questions.”

Connerly v. State Personnel Bd. (2006) 37 Cal. 4th 1169, 1177 quoting *Bily v. Arthur Young & Co.* (1992) 3 Cal. 4th 370, 405 fn. 14.

Amicus curiae briefs are common at the appellate level and permitted in the Court of Appeal pursuant to CRC 8.200(c). There is no corresponding rule at the trial court level. Instead, whether to grant leave to file an amicus curiae brief is left to the sound discretion of the Court. In the absence of a specific rule, the Court looks to the rules that exist for other courts. The Court notes that the proposed amici filed a motion that contains all the information required by CRC 8.200(c). The motion was made on a standard noticed timeframe. While RPI argued very strenuously that the timing of the motion was intended to prejudice RPI, the Court does not find any merit to that argument. One of two counsel being on vacation does not result in a halt to litigation, especially in a time sensitive matter such as this Petition.

RPI also argue that the proposed brief raises new issues not raised by Petitioners. The general rule is that amicus curiae must accept the issues made and propositions urged by the parties and that any additional questions presented in a brief filed by an amicus curiae will not be considered. *California Assn. for Safety Education v. Brown* (1994) 30 Cal. App. 4th 1264. It does not appear that significant new issues are raised. The Court finds that the proposed amicus brief would assist the Court in this matter. The Court exercises its discretion to grant leave to allow the filing of the proposed brief.

The motion is **GRANTED**. Proposed Amici provided a proposed Order that will be executed by the Court. The proposed brief is attached to the moving papers. The Court accepts the brief attached to this motion as appropriately “combined” with the application. (CRC 8.200(c)(4).) Pursuant to CRC 8.200(c)(6), the Court grants any party 10 court days to file an answer to the amicus brief, should they wish to do so.

TILTON PACIFIC CONSTRUCTION, INC, VS. JSK JJ INVESTMENTS, LLC

CASE NUMBER: 25CV-0208796

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause issued on June 24, 2026 to Plaintiff Tilton Pacific Construction, Inc. and Counsel Van De Poel & Levy LLP for failure to timely serve the Complaint. Plaintiff filed a response that provides sufficient excuse for the delay and has also filed a Proof of Service of Summons. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of responsive pleading and, if appropriate, trial setting.